

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 1948 By: Logan of the Senate
3 and
4 Fetgatter of the House
5
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7 An Act relating to fireworks; amending 68 O.S. 2021,
8 Section 1623, which relates to conditions for
storage, transportation, sale, and use; updating
9 statutory language; removing certain requirements to
sell fireworks within certain time frame; prohibiting
10 counties from restricting certain firework display
under certain circumstances; and providing an
effective date.
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13 AUTHOR: Add the following House Coauthor: Kendrix

14 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
and insert:
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16 "An Act relating to fireworks; creating the Rocket's
Red Glare Act; amending 68 O.S. 2021, Section 1623,
17 which relates to conditions for storage,
transportation, sale, and use; updating statutory
18 language; removing certain requirements to sell
fireworks within certain time frame; prohibiting
19 counties from restricting certain firework display
under certain circumstances; amending 68 O.S. 2021,
20 Section 1624, as amended by Section 1, Chapter 144,
O.S.L. 2024 (68 O.S. Supp. 2025, Section 1624), which
21 relates to the distribution of skyrockets; removing
the prohibition of certain skyrockets; providing for
22 noncodification; and declaring an emergency.
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1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law not to be
3 codified in the Oklahoma Statutes reads as follows:

4 This act shall be known and may be cited as the "Rocket's Red
5 Glare Act".

6 SECTION 2. AMENDATORY 68 O.S. 2021, Section 1623, is
7 amended to read as follows:

8 Section 1623. A. Consumer ~~Fireworks~~ fireworks may be legally
9 stored, transported, sold, and used in this state with the
10 exceptions and conditions specified under the provisions of Section
11 1621 et seq. of this title and consistent with Section 22-110 of
12 Title 11 of the Oklahoma Statutes. Novelties may be legally stored,
13 transported, sold, and used in this state.

14 B. All fireworks storage and sales areas shall be conspicuously
15 posted with signs reading "FIREWORKS-NO SMOKING".

16 C. Fireworks offered for retail sale ~~must~~ shall be sold
17 according to the National Fire Protection Association (NFPA) 1124
18 Chapter 7, 2006 Edition. Any facility licensed to sell consumer
19 fireworks prior to November 15, 2009, shall be exempt from the NFPA
20 regulations listed in this subsection but shall remain under the
21 regulation of the date of licensure. Mail-order sales to consumers
22 are prohibited through any medium of either interstate or intrastate
23 commerce. Sales of fireworks ~~may only~~ shall be made at properly
24 licensed retail locations within ~~the State of Oklahoma~~ this state.

1 A sales clerk ~~must~~ shall be on duty to serve the consumer at the
2 time of purchase.

3 D. An enclosed building used for sale of fireworks to the
4 public shall be built according to the International Building Code
5 (IBC) 2006 Edition ~~and/or~~ or the codes and standards adopted by the
6 Oklahoma Uniform Building Code Commission.

7 E. The retail license holder shall be responsible for the safe
8 operation of retail sales to the public. The retail license holder
9 shall be at least sixteen (16) years of age.

10 F. Fireworks may be sold by licensed manufacturers,
11 distributors, or wholesalers at wholesale or retail and by retailers
12 to residents and nonresidents of the state ~~from January 1 until~~
13 ~~December 31 of each calendar year. Fireworks may only be sold by~~
14 ~~licensed retailers from June 15 until July 6 or the first Sunday~~
15 ~~after July 4th, whichever is later, and from December 15 until~~
16 ~~January 2 to residents and nonresidents of the state each calendar~~
17 ~~year.~~

18 G. Nothing in Section 1621 et seq. of this title shall be
19 construed to require the State Fire Marshal to inspect or cause to
20 be inspected portable retail fireworks stands, tents, or other
21 nonrigid shelters prior to opening; provided, the provisions of this
22 subsection shall not prohibit the local governing authority of the
23 location of the portable retail fireworks stand, tent, or other

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1 nonrigid shelter from inspecting such stands, tents, or other
2 nonrigid shelters prior to opening.

3 H. No county shall prohibit a private outdoor consumer
4 fireworks for a noncommercial purpose, provided that:

5 1. Such display is located on private property;

6 2. No county burn ban is in effect as provided for in Section
7 16-26 of Title 2 of the Oklahoma Statutes; and

8 3. There are no red flag fire warnings in effect, meaning:

9 a. no sustained winds greater than twenty (20) miles per
10 hour,

11 b. the relative humidity is above twenty-five percent
12 (25%), and

13 c. the ten-hour dead fuel is above nine percent (9%)
14 moisture.

15 I. Persons lighting fireworks under the conditions listed in
16 paragraph 3 of subsection H of this section shall notify the local
17 responding fire department before lighting any fireworks.

18 SECTION 3. AMENDATORY 68 O.S. 2021, Section 1624, as
19 amended by Section 1, Chapter 144, O.S.L. 2024 (68 O.S. Supp. 2025,
20 Section 1624), is amended to read as follows:

21 ~~A. From and after July 5, 1981, the sale, gift, distribution or~~
22 ~~use of skyrockets with sticks as defined by the United States~~
23 ~~Consumer Product Safety Commission is hereby prohibited within the~~
24 ~~State of Oklahoma. This prohibition shall include, but is not~~

1 ~~limited to, explosive devices commonly known as "bottle rockets" or~~
2 ~~"stick rockets". Distribution, gift or sale from Oklahoma to a~~
3 ~~person outside the State of Oklahoma shall not be considered as~~
4 ~~occurring within the State of Oklahoma. The provisions of this~~
5 ~~subsection shall not apply to the sale of skyrockets with sticks by~~
6 ~~retail and wholesale firework distributors to state-licensed outdoor~~
7 ~~display operators or the use of skyrockets with sticks in connection~~
8 ~~with commercial aerial displays performed by state-licensed outdoor~~
9 ~~display operators.~~

10 ~~B.~~ Any and all items of Consumer Fireworks not properly labeled
11 according to the United States Consumer Product Safety Commission
12 and identified with the appropriate United States Department of
13 Transportation markings is prohibited under the provisions of
14 Section 1621 et seq. of this title.

15 SECTION 4. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval."
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1 Passed the House of Representatives the 29th day of April, 2026.

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4 Presiding Officer of the House of
Representatives
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6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 1948

By: Logan of the Senate

3 and

4 Fetgatter of the House
5

6 An Act relating to fireworks; amending 68 O.S. 2021,
7 Section 1623, which relates to conditions for
8 storage, transportation, sale, and use; updating
9 statutory language; removing certain requirements to
10 sell fireworks within certain time frame; prohibiting
11 counties from restricting certain firework display
under certain circumstances; and providing an
effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 5. AMENDATORY 68 O.S. 2021, Section 1623, is
14 amended to read as follows:

15 Section 1623. A. Consumer ~~Fireworks~~ fireworks may be legally
16 stored, transported, sold, and used in this state with the
17 exceptions and conditions specified under the provisions of Section
18 1621 et seq. of this title and consistent with Section 22-110 of
19 Title 11 of the Oklahoma Statutes. Novelties may be legally stored,
20 transported, sold, and used in this state.

21 B. All fireworks storage and sales areas shall be conspicuously
22 posted with signs reading "FIREWORKS-NO SMOKING".

23 C. Fireworks offered for retail sale ~~must~~ shall be sold
24 according to the National Fire Protection Association (NFPA) 1124

Chapter 7, 2006 Edition. Any facility licensed to sell consumer fireworks prior to November 15, 2009, shall be exempt from the NFPA regulations listed in this subsection but shall remain under the regulation of the date of licensure. Mail-order sales to consumers are prohibited through any medium of either interstate or intrastate commerce. Sales of fireworks ~~may only~~ shall be made at properly licensed retail locations within ~~the State of Oklahoma~~ this state. A sales clerk ~~must~~ shall be on duty to serve the consumer at the time of purchase.

D. An enclosed building used for sale of fireworks to the public shall be built according to the International Building Code (IBC) 2006 Edition ~~and/or~~ or the codes and standards adopted by the Oklahoma Uniform Building Code Commission.

E. The retail license holder shall be responsible for the safe operation of retail sales to the public. The retail license holder shall be at least sixteen (16) years of age.

F. Fireworks may be sold by licensed manufacturers, distributors, or wholesalers at wholesale or retail and by retailers to residents and nonresidents of the state ~~from January 1 until December 31 of each calendar year. Fireworks may only be sold by licensed retailers from June 15 until July 6 or the first Sunday after July 4th, whichever is later, and from December 15 until January 2 to residents and nonresidents of the state each calendar year.~~

1 G. Nothing in Section 1621 et seq. of this title shall be
2 construed to require the State Fire Marshal to inspect or cause to
3 be inspected portable retail fireworks stands, tents, or other
4 nonrigid shelters prior to opening; provided, the provisions of this
5 subsection shall not prohibit the local governing authority of the
6 location of the portable retail fireworks stand, tent, or other
7 nonrigid shelter from inspecting such stands, tents, or other
8 nonrigid shelters prior to opening.

9 H. No county shall prohibit a private outdoor firework display
10 for a noncommercial purpose, provided that:

11 1. Such display is located on private property; and

12 2. No county burn ban is in effect as provided for in Section
13 16-26 of Title 2 of the Oklahoma Statutes.

14 SECTION 6. This act shall become effective November 1, 2026.

15 Passed the Senate the 17th day of March, 2026.

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Presiding Officer of the Senate

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19 Passed the House of Representatives the ____ day of _____,
20 2026.

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Presiding Officer of the House
of Representatives

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